

SENATE No. 83

The Commonwealth of Massachusetts

PRESENTED BY:

Adam Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to modernize Massachusetts medical marijuana program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Adam Gómez</i>	<i>Hampden</i>	
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>4/28/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/16/2025</i>

SENATE No. 83

By Mr. Gomez, a petition (accompanied by bill, Senate, No. 83) of Adam Gomez for legislation to modernize Massachusetts medical marijuana program. Cannabis Policy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to modernize Massachusetts medical marijuana program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of Chapter 94I of the General Laws is hereby amended by striking
2 the definition of “Card holder” and inserting in place thereof the following definition:-

3 “Card holder,” a registered qualifying patient, personal caregiver, or agent of a medical
4 marijuana treatment center who has been issued and possesses a valid registration card, or an
5 individual who possesses a valid patient registration for medical use marijuana issued by a
6 jurisdiction of the United States.

7 SECTION 2. Subsection (a) of Section 2 of Chapter 94I is hereby amended by striking
8 the words: "may sell medical use marijuana to a card holder" and inserting in place thereof the
9 following words:-

10 “licensed and authorized by the Commission to dispense or deliver medical use marijuana
11 may sell medical use marijuana to a card holder”

SECTION 3. Paragraph 2 of Subsection (b) of Section 2 of Chapter 94I is hereby amended by striking the words: "qualifying patient or a personal caregiver" and inserting in place thereof the following words:-

"card holder"

SECTION 4. Subsection (c) of Section 2 of Chapter 94I is hereby amended by striking the words: "qualifying patients or their personal caregivers" and inserting in place thereof the following words:-

"card holders"

SECTION 5. Subsection (ii) of Section 6 of Chapter 94I is hereby amended by striking the word:-

"or"

SECTION 6. Subsection (iii) of Section 6 of Chapter 94I is hereby amended by striking the period at the end of the clause and inserting in place thereof a semicolon.

SECTION 7. Section 6 of Chapter 94I is hereby amended by adding the following subsection:-

"(iv) require medical use marijuana licensees to simultaneously cultivate, process, and dispense medical use marijuana as a condition of obtaining or maintaining licensure to operate a medical marijuana treatment center; or"

SECTION 8. Section 6 of Chapter 94I is hereby further amended by adding the following subsection:-

32 "(v) require that an applicant for a medical use marijuana license demonstrate initial
33 capital resources of \$500,000 for an initial license application or \$400,000 for subsequent
34 applications for licensure."

35 SECTION 9. Section 7 of Chapter 94I is hereby amended by striking the words: "for
36 medical marijuana treatment centers so as to defray the administrative costs of the medical
37 marijuana program and ensure the medical marijuana program is revenue neutral" and inserting
38 in place thereof the following words:-

39 "and license fees for medical marijuana treatment centers that shall not exceed \$1,000
40 each. A social equity business, as defined in Chapter 94G, shall be exempt from these fees."

41 SECTION 10. Subsection (b) of Section 14 of Chapter 94G is hereby amended by
42 inserting after the words "enforcement of this chapter" the following words:-

43 “, and chapter 94I,”